

22CHCV01321 22CHCV01321

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-08-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C08%2F10%2F2026

Source SHA-256: 7a8d6115ea8395242305b36681dc5eb73d1344670d7d08d2cb96877fd12d434e

Case Number: 22CHCV01321 Hearing Date: August 10, 2026 Dept: F47

Dept. F47

Date: 8/10/26

Case #22CHCV01321

MOTION TO

STRIKE,

OR, IN THE

ALTERNATIVE,

TAX COSTS

Motion filed on 3/27/26.

MOVING PARTY: Plaintiff Oliva Moreno Posada aka Oliva M.

Posada

RESPONDING PARTY: Defendant American Honda Motor Co.,

Inc.

NOTICE: ok

RELIEF REQUESTED: An order striking and/or taxing costs

submitted by Defendant American Honda Motor Co., Inc. which are unrecoverable under CCP 1033.5.

RULING: The request to strike Defendant's entire cost memorandum is denied. The request to tax certain costs is granted, in part, and denied, in part, as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arose out of Plaintiff Olivia Moreno Posada aka Olivia M. Posada's (Plaintiff) lease/purchase of a 2022 Honda CR-V (the Vehicle). Plaintiff contended that the Vehicle was defective and Defendant American Honda Motor Co., Inc. (Defendant) had been unable to service or repair the Vehicle to conform to the applicable express warranties after a reasonable number of opportunities. Plaintiff further contended that despite the foregoing, Defendant failed to promptly replace/repurchase the Vehicle as required under the Song-Beverly Act.

As a result, on 12/7/22, Plaintiff filed this action against Defendant for: (1) Violation of the Song-Beverly Act – Breach of Express Warranty and (2) Violation of Song-Beverly Act – Breach of Implied Warranty. Defendant filed an answer to the complaint on 1/3/23.

On 4/30/24, Defendant served a CCP 998 Offer to Compromise in the amount of \$10,000. (Freedman Decl. ¶6).

On 2/26/26, the jury returned a verdict in favor of Defendant. The judgment also provides that Defendant is to recover costs from Plaintiff. On 3/12/26, Defendant filed and served its Memorandum of Costs which seeks a total of \$17,359.61 (reduced in the reply from the \$17,531.62 sought in the motion) in costs. On 3/27/26, Plaintiff filed and served the instant motion seeking an order striking and/or taxing costs submitted by Defendant which are unrecoverable under CCP 1033.5. Defendant has opposed the motion and Plaintiff has filed a reply to the opposition.

ANALYSIS

As the prevailing party in this action, Defendant is

entitled to recover certain costs as a matter of right. See CCP 1032(b); CCP 1033.5(a). If items on their face appear to be proper

charges, a verified memorandum of costs

is prima facie evidence of the propriety of such costs, and the party seeking

to tax the costs has the burden to show they were not reasonable or necessary. See Jones (1988) 63 CA4th 1258, 1266. However, if items are properly

objected to, they are put in issue and the party claiming the costs has the burden of proof. Id. citing Ladas

(1993) 19 CA4th 761, 774. Whether a item

was reasonably necessary is a question of fact for the trial court. Id.

Plaintiff challenges every item in Defendant's 3/12/26

Memorandum of Costs. Notably, even after

Plaintiff challenged every item in Defendant's 3/12/26 Memorandum of Costs,

Defendant did not provide the optional form approved by the Judicial Council to support/clarify the costs claimed.

Item 1 – Filing and Motion Fees: \$2,007.00: Filing

and motion fees are among the costs which are expressly recoverable by a

prevailing party. CCP 1033.5(a)(1). In support of the filing and motion fees

claimed, defense counsel provides tables regarding the claimed costs. For those costs incurred when Defendant was represented by the Clark Hill firm, the table merely sets forth the "Work Date"

and the generic description of "Filing Fees" with various costs ranging from

\$74.00 to \$158.00." (See Motion,

p.6:16-19). With regard to costs

incurred while Defendant was represented by the Nelson Mullins Firm, the table

provides more descriptive information regarding the "Cost Type" (e.g. Ex Parte

Application; Order; Motion in Limine). (Id.,

p.6:22-28). While Defendant also

provides invoices to support the claimed costs, they are lumped together with

the invoices for electronic filing and service fees. (See Freedman Decl. ¶¶16-19,

Ex.3). It is neither Plaintiff's nor the

Court's obligation to go through each invoice to determine what is a

recoverable filing fee.

Moreover, certain of the "Costs Types" do not have

associated "filing fees." For example

there is no filing fee for an "order" or a "motion in limine." As such, it appears that Defendant is

improperly seeking to recover other costs such as e-filing charges under this

item. (See Freedman Decl.,

Ex.3). It also cannot be easily determined whether any of these costs are duplicative of the \$1,240.33 in costs sought to be recovered under Item 14 for "Fees for electronic filing or service."

Based on the information set forth in the opposition and the court file, the Court finds that Defendant is entitled to recover its \$435 first appearance filing fee and \$180 for filing fees for 3 ex parte applications (\$60 each) which were granted for a total of \$615. While Defendant's chart has 4 ex parte entries citing dates 12/15/25, 1/7/25, 1/8/25 and 10/15/25, the court file does not show ex parte applications filed by Defendant on 1/7/25 or 1/8/25. Rather, the court file shows an ex parte application filed by Defendant on 1/6/25 which was granted on 1/9/25.

Therefore, Item 1 is taxed/reduced in the amount of \$1,392.00 leaving \$615.00 as the recoverable amount.

Item 2 – Jury Fees: \$575.75: Jury fees are also costs which are expressly recoverable by the prevailing party. CCP 1033.5(a)(1). The reply indicates that Plaintiff withdraws the challenge to this item based on the receipts provided by Defendant. (See Reply, p.3:27-28).

Therefore, Item 2 is taxed in the amount of \$0 leaving \$575.75 as the recoverable amount.

Item 4 – Deposition Costs: \$3,782.76: As the prevailing party, Defendant is entitled to recover costs for: "(A) Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed. (B) Fees of a certified or registered interpreter for the deposition of a party or witness who does not proficiently speak or understand the English language. (C) Travel expenses to attend depositions." CCP 1033.5(a)(3).

In the opposition, Defendant breaks down the deposition costs as: (1) \$1,930.30 for the deposition of Plaintiff; (2) \$1,093.26 + \$102.50 for the deposition of George R. Magana and (3) \$621.70 + \$35.00 for the deposition of Eduardo Willis. (See Opposition, p.9:8-13). Additionally,

Defendant has provided invoices to support the claimed costs. (See Freedman Decl. ¶21, Ex.5). The Court finds that the documentation provided with the opposition sufficiently supports the deposition costs

claimed.

Therefore, Item 4 is taxed in the amount of \$0 leaving \$3,782.76 as the recoverable amount.

Item 5 – Service of Process: \$215.78: A prevailing party is also entitled to recover costs for service of process. CCP 1033.5(a)(4). Defendant has established that it incurred \$215.78 in costs to subpoena Plaintiff's repair order records from Autonation Honda Valencia. (Freedman Decl. ¶20, Ex.4). Plaintiff has failed to establish that such costs were incurred "solely for convenience."

Therefore, Item 5 is taxed in the amount of \$0 leaving \$215.78 as the recoverable amount.

Item 8 – Witness Fees: \$990.00: The prevailing party in an action may recover ordinary witness fees pursuant to Government Code 68093 and fees of expert witnesses ordered by the court. CCP 1033.5(a)(7) and (8). Defendant does not seek to recover ordinary witness fees or expert witness fees ordered by the Court.

Rather, Defendant seeks to recover costs incurred in relation to deposing Plaintiff's expert and employing an outside expert to respond to Plaintiff's claim that there was a defect in Defendant's collision mitigation braking system (CMBS). Because Plaintiff failed to accept Defendant's \$10,000 CCP 998 Offer to Compromise and recovered nothing at trial, the Court has the discretion to award Defendant the expert fees incurred. CCP 998(c)(1).

Additionally, CCP 998(c)(1) provides:

"If an offer [to settle] made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses,

who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant.” (emphasis added)

Here, Defendant seeks to recover \$990.00 for the fee paid to Plaintiff’s expert, George Magana, for his deposition. (Freedman Decl., Ex.1). Additionally, Defendant seeks to recover \$8,720.00 paid to Defendant’s expert, Robert Pascarella. (Freedman Decl. ¶122, Ex.6). However, Defendant listed Pascarella’s fees under Item 15 “Other” in its Memorandum of Costs.

The Court finds that the fees for both experts are reasonable in amount, were actually incurred and were reasonably necessary in the preparation for trial. CCP 998(c)(1). As such, the Court exercises its discretion to award such fees to Defendant.

Based on the foregoing, Item 8 and Item 15 are taxed in the amount of \$0 leaving \$990.00 as the recoverable amount for Item 8 and \$8,720.00 as the recoverable amount for Item 15 which should have been included under Item 8.

Item 14 – Fees for electronic filing or service:
\$1,240.33: As the prevailing party, Defendant is entitled to recover fees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents. CCP 1033.5(a)(14).

The opposition concedes that these costs should be reduced to \$1,141.16. The Court finds that Defendant has adequately supported the remaining costs under this item. (See Freedman Decl., Ex.3).

Therefore, Item 14 is taxed in the amount of \$99.17 leaving \$1,141.16 as the recoverable amount.

CONCLUSION

The request to strike Defendant’s entire cost memorandum is denied. The request to tax certain costs is granted, in part, and denied, in part, as set forth above. Defendant’s costs are taxed in the amount of \$1,491.17 leaving \$16,040.45 as the

recoverable amount.

The Court notes that in violation of CRC 3.1110(f)(4),

Defendant's counsel has failed to electronically bookmark several of the exhibits attached to the Freedman declaration.

Counsel for the parties are warned that failure to comply with this rule in the future may result in matters being continued so that papers can be re-filed in compliance with the rule, papers not being considered and/or the imposition of sanctions.